

GLEN LLC and “NARENDRA CHAGANTI”) is the same lease agreement on which Plaintiff NAREN CHAGANTI’s claim is based against Defendants RED TAIL RESIDENTIAL LLC and LINDSY HARVEY.

As such, Defendants have not established by admissible evidence that a mandatory forum selection clause exists between the parties.

Traditional Discretionary Forum Non Conveniens

“In applying the traditional forum non conveniens analysis, the trial court must engage in a two-step process, on which the defendant bears the burden of proof. [Citation.] In the first step, the court must determine whether a suitable alternative forum exists. [Citation.] If the court finds that a suitable alternative forum exists, it must then balance the private interests of the litigants and the interests of the public in retaining the action in California. [Citation.]” (*Animal Film, LLC v. D.E.J. Prods., Inc.* (2011) 193 Cal.App.4th 466, 472.)

Step One - Suitable Alternative Forum

“A forum is suitable if there is jurisdiction and no statute of limitations bar to hearing the case on the merits. [Citation.] ‘[A] forum is suitable where an action “can be brought,” although not necessarily won.’ [Citations.]” (*Animal Film*, 193 Cal.App.4th at 472.) The existence of a suitable alternative forum is a legal question. (*Ibid.*)

Defendants contend that Missouri is a suitable alternative forum given that the lease involves real property in Missouri. Further, Defendants contend that Defendants will consent to the jurisdiction of the out-of-state forum, Missouri, for the purposes of litigating these claims and will agree to toll the statute of limitations for the time this Action is pending against Defendant in California. To the extent that Defendants actually reach such an agreement, Defendants have identified a suitable alternative forum.

Step Two - Balance of Interests of Parties and Public

The second step involves consideration of the private interest factors and the public interest factors. The private interest factors include “the ease of access to sources of proof, the cost of obtaining attendance of witnesses, and the availability of compulsory process for attendance of unwilling witnesses.” (*Ford Motor Co. v. Insurance Co. of North America* (1995) 35 Cal.App.4th 604, 610.) “The public interest factors include avoidance of overburdening local courts with congested calendars, protecting the interests of potential jurors so that they are not called upon to decide cases in which the local community has little concern, and weighing the competing interests of California and the alternate jurisdiction in the litigation.” (*Stangvik v. Shiley Inc.* (1991) 54 Cal.3d 744, 751.)

A. Private Factors (access to proof, cost of obtaining witnesses, availability of compulsory process)

The court finds that the private factors are neutral. Defendant Red Tail is alleged to be a business with a principal place of business in Irvine, California. Plaintiff is also currently a resident of California. Defendants do not dispute Red Tail’s principal place of business. It is unclear the state of which Defendant Lindsay Harvey is a resident. Further, Plaintiff offered evidence of an email relating to the towing at issue, which appears to give the contact information/address of Lindsay Harvey at “RED TAIL RESIDENTIAL, 2082 Michelson Drive, Irvine, CA 9612.” (See Chaganti Decl., Exh. 1 at signature block). Defendants do not proffer evidence that the access to proof, cost of obtaining witnesses, or the compulsory process for attendance of unwilling witnesses would be more difficult or burdensome in California.

B. Public Factors

The court also finds that the public factors are neutral. Defendant Red Tail’s principal place of business is in California. Venue is proper in the county where the principal place of business of a corporation is situated. (*Hale v. Bohannon* (1952) 38 Cal.2d 458, 469). A plaintiff's